Memorial Healthcare System

PRIVACY AND DATA SECURITY CERTIFICATION FOR VENDORS

- [x] New Vendor
- [ ] Existing Vendor

- [x] New Software
- [ ] Existing Software
- [x] New Equipment (w/software)
- [ ] Existing Equipment (w/software)

(Please click to check each box above that applies)

South Broward Hospital District
d/b/a Memorial Healthcare System
3111 Stirling Road
Hollywood, FL 33312

PERIGEN, INC. ("Vendor") proposes to enter into

PERIGEN MASTER SOFTWARE LICENSE AND SUPPORT AGREEMENT

(collectively, "Agreement") with South Broward Hospital District d/b/a Memorial Healthcare System ("Memorial"). To confirm the appropriate documentation that needs to accompany the Agreement so that the parties will be in compliance with privacy and data security requirements under applicable law, Memorial needs Vendor to respond to the following:

COMPANY PROFILE	
Company/business name: PERIGEN, INC.	
Name of the holding or parent company: Halma, plc	
PRIVACY CERTIFICATION	
Question #1: Will Vendor require access to any Memorial Protected Health Information (as defined in HIPAA) ("PHI") (including any Limited Data Set) to provide services, or otherwise have the ability to access (without assistance or monitoring by Memorial personnel) Memorial PHI when providing services, under the Agreement? **PHI elements are listed below (please click to check each box that applies) (reply "yes" even if access applies only to one element):** 1. Name [x] 2. Medical Record Number [x] 3. Dates (birth date, admission date, discharge date, date of death) [x] 4. Postal Address [ ] 5. Full face photographic images [ ] 6. Social Security Number [ ] 7. Telephone Number [ ] 8. Fax Number [ ] 9. Email Address [ ] 10. Account Number [x] 11. Health Plan Beneficiary Number [ ]	[x] Yes [ ] No

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12. Device Identifiers ☐ 13. Biometric Identifiers ☐ 14. Vehicle Identifiers ☐ 15. Web Address ☐ 16. IP Address ☐ 17. URL Address ☐ 18. Certificate/Driver License Number ☐	
Question #2: Will Vendor maintain in electronic form any personal information (as defined in §501.171 Fla Stat) ("PII") when providing services under the Agreement? **PII elements are an individual's first name or first initial and last name in combination with any one or more of the data elements listed below (please click to check each box below that applies):** a. An individual's first name or first initial and last name in combination with any one or more of the following data elements for that individual: (I) A social security number; ☐ (II) A driver license or identification card number, passport number, military identification number, or other similar number issued on a government document used to verify identity; ☐ (III) A financial account number or credit or debit card number, in combination with any required security code, access code, or password that is necessary to permit access to an individual's financial account; ☐ (IV) Any information regarding an individual's medical history, mental or physical condition, or medical treatment or diagnosis by a health care professional; ☑ (V) An individual's health insurance policy number or subscriber identification number and any unique identifier used by a health insurer ☐	☑ Yes ☐ No
IF THE ANSWER TO EITHER QUESTION #1 OR #2 ABOVE, OR BOTH, IS "YES": DO NOT RESPOND TO QUESTION #3; PROCEED TO COMPLETE QUESTIONS #4 - #12 BELOW, AND SIGN	
QUESTION #3: IF YOUR RESPONSES TO BOTH QUESTIONS #1 AND #2 ARE "NO" – PLEASE CONFIRM THE FOLLOWING BY CHECKING THE BOX TO THE RIGHT: Vendor hereby represents, warrants, and certifies that, with respect to Vendor's performance of its obligations and exercise of its rights under the Agreement (when executed), no employee, contractor, subcontractor, agent, representative of, or any other person acting on behalf of, or at the direction of, Vendor will require access to, or have the ability to access (without assistance or monitoring by Memorial personnel) any PHI or PII.	☐ **Yes, confirmed** **IF "YES," SKIP QUESTIONS #4 - #12 BELOW AND SIGN**

DATA SECURITY CERTIFICATION

QUESTION #4: What services or software are (or will be) provided by Vendor to MHS or its facilities?

PeriGen will be providing the PeriWatch Vigilance Maternal/Fetal Early Warning System software solution to be used in MHS Labor and Delivery Units. PeriGen will also be providing Implementation Services which include a Project Manager, a Technical Lead and a Clinical Lead to whom will help educate end users on how to use the system as well as be available to support the Go Live. PeriGen will also be providing 24/7 Technical Support after the system is Live.

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QUESTION #5: Will Vendor share MHS PHI or PII with another vendor or organization? **(please click to check each box that applies)**	☐ Yes ☑ No ☐ PHI ☐ PII
If yes, please list name of vendor(s) or organization(s) and state the purpose of the disclosure:	
QUESTION #6: If Vendor's products or services involve software that stores PHI/PII, will the software be installed in equipment or systems located only on-premises at MHS? What will be stored? **(please click to check each box that applies)**	☑ Yes ☐ No ☑ PHI ☑ PII
If no, please list location and owner of location:	
QUESTION #7: Who will have access to MHS' PHI/PII? authorized users to access the application and authorized PeriGen ops have access to the server for support operations.	
QUESTION #8: Will the PHI/PII be stored in the cloud? If yes, please confirm if PHI, PII, or both. **(please click to check each box that applies)**	☐ Yes ☑ No ☐ PHI ☐ PII
If yes, please list cloud provider organization's name:	
QUESTION #9: Will any other Vendor subcontractors have access to MHS' PHI or PII? **(please click to check each box that applies)**	☐ Yes ☑ No ☐ PHI ☐ PII
If yes, please list the name of the subcontractor(s):	
QUESTION #10: If Vendor will have access to MHS PHI, has your organization (and all of your subcontractors with access to MHS PHI) implemented policies and procedures and other internal controls that fulfill all applicable requirements of the HIPAA Security and Privacy rules.	☑ Yes ☐ No
QUESTION #11: If Vendor will have access to MHS PHI/PII, please name any third parties that provide any data security risk assessment or audit services: If none, please check no. If yes, please confirm if PHI, PII, or both. **(please click to check each box that applies)**	☐ Yes ☑ No ☐ PHI ☐ PII
QUESTION #12: Has Vendor suffered a data loss or security breach within the last 3 years?	☐ Yes ☑ No
If yes, please describe the loss or breach: add remediation/mitigation actions:	

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VENDOR PRIVACY/IT DATA SECURITY OFFICER CONTACT	
Name and Title: Bruno Bendavid	
Address: 100 Regency Forest Dr #200, Cary, NC 27518	
Phone: 984-208-4250	Email: bruno.bendavid@perigen.com

The undersigned hereby represents, warrants, and certifies that s/he has all requisite right, power, and authority to execute and deliver this certification on behalf of Vendor and to bind the Vendor to the terms of this certification. Vendor hereby covenants and agrees to defend Memorial against any claim, demand, suit or proceeding (each, a "Claim") made or brought against any Memorial alleging that such authority did not exist and to indemnify and hold harmless Memorial from and against any and all damages, losses, injuries to third parties, liabilities, fines, judgments, penalties, costs and expenses actually incurred by Memorial as a result of any such Claim.

IN WITNESS WHEREOF, Vendor has caused this certification to be duly executed on its behalf and does hereby represent, warrant and certify that the information submitted herein is true, correct and complete.

PERIGEN, INC.

By: _____
(Sign here)

Name: Bruno Bendavid
(Print name)

Title: SVP Product Management
(Print title)

Date: Jan 16, 2024